

ORIGINAL

FILED
UNITED STATES DISTRICT COURT
DENVER, COLORADO

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO

AUG 29 2012

Civil Action No. 09-cv-02413-WYD-KMT

GREGORY C. LANGHAM
CLERK

CROSS CONTINENT DEVELOPMENT, LLC,
a Colorado limited liability corporation,

Plaintiff,

v.

TOWN OF AKRON, Colorado,
a Colorado municipal corporation; and
CARL S. McGUIRE II, Esq., in his official capacity
as Attorney for the Town of Akron,

Defendants.

VERDICT

WE, THE JURY, in the above-captioned action, render our verdict as follows:

I. FOURTEENTH AMENDMENT – PROCEDURAL DUE PROCESS

1. Do you find that Plaintiff Cross Continent Development, LLC has proven, by a preponderance of the evidence, its claim against Defendant Town of Akron for violation of its federal constitutional right to procedural due process pursuant to 42 U.S.C. § 1983 and the 14th Amendment to the United States Constitution?

Yes _____

No ☒ _____

Proceed to Question 2.

2. Do you find that Plaintiff Cross Continent Development, LLC has proven, by a preponderance of the evidence, its claim against Defendant Carl McGuire for

violation of its federal constitutional right to procedural due process pursuant to 42 U.S.C. § 1983 and the 14th Amendment to the United States Constitution?

Yes _____ No ✓

Proceed to Question 3.

II. FOURTEENTH AMENDMENT – SUBSTANTIVE DUE PROCESS

3. Do you find that Plaintiff Cross Continent Development, LLC has proven, by a preponderance of the evidence, its claim against Defendant Town of Akron for violation of its federal constitutional right to substantive due process pursuant to 42 U.S.C. § 1983 and the 14th Amendment to the United States Constitution?

Yes _____ No ✓

Proceed to Question 4.

4. Do you find that Plaintiff Cross Continent Development, LLC has proven, by a preponderance of the evidence, its claim against Defendant Carl McGuire for violation of its federal constitutional right to substantive due process pursuant to 42 U.S.C. § 1983 and the 14th Amendment to the United States Constitution?

Yes _____ No ✓

If you answered “Yes” to ANY of Question 1, Question 2, Question 3, or Question 4, proceed to Section III.

If you answered “No” to Question 1, Question 2, Question 3, AND Question 4, do not answer the remaining questions, and sign and date the verdict form.

III. DAMAGES

5. What amount of damages will reasonably and fairly compensate Plaintiff Cross Continent Development, LLC for any losses suffered that were proximately caused by one or more of the violations set forth in your answers to Questions 1-4? Answer in dollars and cents in the space below:

Compensatory Damages against Town of Akron: \$ _____

Compensatory Damages against Carl McGuire: \$ _____

If you awarded compensatory damages against Carl McGuire, proceed to Question 6. If you awarded no damages against Carl McGuire, do not answer the next question, and sign and date the verdict form.

IV. PUNITIVE DAMAGES

6. If you have awarded compensatory damages to Plaintiff, and if you found Defendant McGuire liable under Question 2 or 4, what amount of punitive damages, if any, do you award against Defendant McGuire? Answer in dollars and cents in the space below:

Defendant McGuire: \$ _____

[State the amount or, if none, write the word “none.”]

CERTIFICATION

Sign and Date the Verdict Form

Dated this 29 day of August, 2012

_____	_____
_____	_____
_____	_____
_____	_____
_____	_____